

23SMCV02370 23SMCV02370

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TENTATIVE RULING

Cross-Defendant David Laporte's Demurrer to Cross-Complainants, Reynaldo Adalin and Donna M. Adalin's Cross-Complaint for Equitable Indemnity, Equitable Contribution, and Declaratory Relief is **OVERRULED**.

Cross-Defendant David Laporte shall file and serve an answer to Defendants/Cross-Complainants Reynaldo Adalin and Donna M. Adalin's Cross-Complaint within ten (10) days of entry of this order. (Cal. Rules of Court, rule 3.1320(j).)

Cross-Defendant David Laporte to give notice.

First Cause of Action: Equitable Indemnity and Second Cause of Action: Equitable Contribution

"Equitable indemnity, which requires no contractual relationship, is premised on a joint legal obligation to another for damages; it is subject to allocation of fault principles and comparative equitable apportionment of loss." (C.W. Howe Partners Inc. v. Mooradian (2019) 43 Cal.App.5th 688, 700, quotation marks omitted.) "The elements of a cause of action for equitable indemnity are (1) a showing of fault on the part of the indemnitor and (2) resulting damages to the indemnitee for which the indemnitor is equitably responsible." (Ibid., quotation marks, brackets, and ellipses omitted.) Equitable contribution "is the right to recover, not from the party primarily liable for the loss, but from a co-obligor who shares such liability with the party seeking contribution." (Hartford Casualty Insurance Co. v. Mt. Hawley Insurance Co. (2004) 123 Cal.App.4th 278, 287, emphasis omitted.)

In the cross-complaint, Cross-Complainants allege that Plaintiff Susana Maribel Samoya filed a complaint against them, and Cross-Complainants retained an arborist who recently inspected the area where the incident occurred had observed surface roots from a neighboring tree near the sidewalk uplift, and the tree is believed to be on Cross-Defendant's property, such that if Cross-Complainants are found negligent, then they are entitled to indemnification and contribution from Cross-Defendant. (Cross-Compl. ¶¶ 7-11, 15.) Cross-Complainants have sufficiently alleged these claims based on a theory that if they are liable, Cross-Defendant is fully or partially responsible for such damages, and Cross-Complainants need not plead anything additional at this juncture. Moreover, Cross-Complainants may advance a position that may differ from a position taken in regard to a different pleading, i.e., an alternative theory of liability. Accordingly, Cross-Defendant's demurrer to the first and second causes of action is **OVERRULED**.

Third Cause of Action: Declaratory Relief

"To qualify for declaratory relief, a party would have to demonstrate its action presented two essential elements: (1) a proper subject of declaratory relief, and (2) an actual controversy involving justiciable questions relating to the party's rights or obligations." (Jolley v. Chase Home Finance, LLC (2013) 213 Cal.App.4th 872, 909, quotation marks and brackets omitted.)

Cross-Complainants allege that there is a controversy between them and Cross-Defendant as to who is liable for what damages. (Cross-Compl. ¶¶ 20-21.) The Court finds this to be a sufficient theory of a basis for declaratory relief. Thus, Cross-Defendant's demurrer to the third cause of action is OVERRULED.